

Justification and Approval (J&A) for Other Than Full and Open Competition

Was a J&A approved for the preceding acquisition where that acquisition required a J&A? ☒ Yes ☐ No

!! Attach the preceding J&A in the staff package for this J&A. The preceding J&A will be used as a reference document.

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined at [DAFFARS 5302.101](#)? ☐ Yes ☒ No

Dollar Value of this Acquisition: ☐ ≤ \$750K ☐ > \$750K and ≤ \$15M ☐ > \$15M and ≤ \$100M ☒ > \$100M

Contracting Activity: AFLCMC/WAMKC

Purchase Request (if available) / Local ID Number:

Program / Project (and PE, if applicable): F-16 AN/APG 66/68 Radar Post Production Sustainment (PPS) Support

Program Type (PEO, Enterprise, of Operational): PEO Program

Authority:

6.302-1 – 10 USC 3204(a)(1), Only One Responsible Source - No Other Supplies or Services Will Satisfy Agency Requirements

Estimated Contract Cost (including options): \$ 488,000,000

J&A Type: ☐ Class ☒ Individual

COORDINATION ([DAFFARS 5306.304\(a\)](#))

[Sign and Save Procedure](#)

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** To remove a row, click the "X" next to the signature block. **CAUTION:** Once removed, it can only be restored by downloading the [BLANK FORM](#) again.

Date	Program Manager	Signature	
17 Dec 2024			X
Date	Contracting Officer	Signature	
20 Dec 2024	GEORGE N BELL JR AFLCMC/WAMKC/801-586-5094	BELL.GEORGE.NJR Digitally signed by BELL.GEORGE.NJR Date: 2024.12.20 08:50:48 -07'00'	X
Date	Local Legal Reviewer	Signature	
			X
Date	Chief of the Contracting Office (COCO)	Signature	
29 Jan 2025			X
Date	Competition Advocate	Signature	
26 Mar 2025			X
Date	Senior Contracting Official (SCO)	Signature	
	CHRISTI A. FRUHWIRTH AFSC/PK OL-Hill/801-777-7553	FRUHWIRTH.CHRISTI.A. 1231478880 Digitally signed by FRUHWIRTH.CHRISTI.A.1231478880 Date: 2025.03.28 14:51:03 -06'00'	X
Date	PEO/Commander (Requirements Cognizance)	Signature	
	Jason D. Voorheis, Brig Gen, USAF AFLCMC/WA	VOORHEIS.JASON.D.10 62133755 Digitally signed by VOORHEISJASON.D.1062133755 Date: 2025.05.16 01:02:49 -04'00'	X

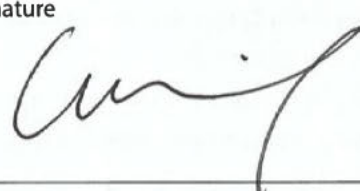
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Date	LANCE R. FRENCH, Brig Gen, USAF Deputy Assistant Secretary (Contracting) Assistant Secretary of the Air Force (Acquisition, Technology & Logistics)	Signature FRENCH.LANCE. R. [REDACTED] Digitally signed by FRENCH.LANCE.R. [REDACTED] Date: 2025.07.31 10:26:51 -04'00'
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APPROVAL ([DAFFARS 5306.304\(a\)](#))

Date 14 Aug 25	WILLIAM D. BAILEY Director & Program Executive Officer, Air Force Rapid Capabilities Office Performing the duties of the Assistant Secretary of the Air Force (Acquisition, Technology, & Logistics) HAF SAF/AQ / 703-693-9373	Signature 
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I. Agency and Contracting Activity.

F-16 Foreign Military Sales AFLCMC/WAMK
6072 Fir Avenue, Building 1233 Hill AFB, UT 84056-5805
Contracting Officer: George Bell DSN: 586-5094

II. Nature and/or description of the action being approved.

Due to the circumstances described herein, the activity request authority to acquire support services for the F-16 Army/Navy (AN)/APG 66/68 Radar Program under the authority of Individual J&A using Other than Full and Open Competition in accordance with Federal Acquisition Regulation (FAR) 6.302-1, Only One Responsible Source and No Other Supplies and Services Will Satisfy Agency Requirements. Specifically, FAR 6.302-1(a)(iii)(B) permits services may be deemed to be available only from the original source in the case of follow-on contracts for the continued provision of highly specialized services when it is likely that award to any other source would result in unacceptable delays in fulfilling the agency's requirements.

This Individual J&A will result in the award of a Firm-Fixed Price (FFP) and Cost Plus Fixed Fee (CPFF) 10-year indefinite delivery indefinite quantity (IDIQ) contract consisting of an ordering period of five-year base and one five-year option, with a total possible period of performance of 10. The proposed contract will include FAR 52.217-8, Option to Extend Services, for the authority to unilaterally extend the term of services for up to six months if necessary. This program will provide F-16 AN/APG-66/68 Radar Post-Production Sustainment (PPS) Support Services to include long-term support for sustainment, limited repair on test stations, modification support, and hardware acquisition.

This contract is expected to facilitate convenient, fast ordering for all customers. For those requirements where inadequate pricing history is available or the level of effort is unknown, such as engineering services, if CPFF pricing arrangements are used, pricing will be negotiated. Core tasks are applicable only for participating Air Forces that have funded their cost share in this contract. Core tasks will be priced at the IDIQ level for the first 3 years of the base ordering period. Core Support will be solicited as FFP to establish the basis for cost sharing arrangements. A separate task order will be issued for Core Support for each yearly requirement. Non-Core tasks are additional support that fall beyond the scope of Core tasks and only support those participating Air Forces that have funded their cost share portion of the Core. Non-Core tasks will be priced at the task order level. The balance of the contract (Non-Core tasks) will consist of customer-peculiar services requiring a separate Performance Work Statement (PWS) to be issued on separate task orders.

These requirements have been supported in the past by NGSC under the previous contract managed by 416 Supply Chain Management Squadron/GUMAD. This is a follow-on effort. Due to the heavy utilization of this effort, primarily by FMS, and significant F-16 footprint, the effort is being transitioned to the FMS Program Office (AFLCMC/WAMI). When awarded, the contract will be managed by F-16 International Programs Branch AFLCMC/WAMI.

Total Estimated Ceiling: \$488,000,000

III. Description of supplies/services required to meet agency needs.

The current program is owned by the United States Air Force (USAF) under the F-16 Radar Falcon 2020 PPS Contract (F42620-01-D-0076) and is currently managed by the 416 SCMS/GUMAD office. This PPS program was awarded 27 February 2002 to NGSC as the Original Equipment Manufacturer (OEM) and expires 31 October 2025. The current

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program addresses the requirement to ensure continued attainment of readiness and sustainability objectives ensuring long-term support that takes into consideration the European Participating Air Force (EPAF), FMS, and the USAF program needs.

This follow-on program will provide long-term support for the numerous legacy F-16 Radars. It will provide one contract vehicle that will support the F-16 Radar for the life of the contract through Core and Non-Core Functions. The radar is an integral part of the F-16 Aircraft avionics suite. This family of legacy radars is used extensively by the USAF, EPAF, FMS, United States Navy (USN), and other government agencies. During the course of the contract, it is expected the following configurations will be supported:

AN/APG-66 Radar (Block 10/15),
 AN/APG-66V2N3 Radar (Block 10/15),
 AN/APG-68 Radar (Block 25-50),
 AN/APG-68VXM, and
 Agile Beam Radar.

One pre-defined and annually funded FFP task order will be for the group of services heretofore referred to as "Core Support." This group of engineering services is required for the continued sustainment of the F-16 fleet and provides a common benefit to all F-16 customers. Costs of Core Functions will be shared among the customers in the program and will be used as a foundation to support all other efforts that may come as a result of Non-Core task orders.

The following are Core Functions:

1. Diminishing Manufacturing Sources/Material Shortages (DMS/MS) Resolution: The contractor shall develop impact analysis, investigate alternatives, and develop viable solutions for DMS/MS piece parts. Engineering support for DMS/MS will maintain a database for all DMS notices issued and make recommendations for new/alternative part(s), new sources, etc.
2. Program Management (PM): This effort will include, but is not limited to, an individual responsible for customer requirements to determine the scope of the effort performed from program inception until the completion of the contract. The representative will also provide customer interface on F-16 Radar Support requirements such as Technical Order (T.O.) maintenance, configuration management, manufacturing management, and Logistics Support Analysis (LSA).
3. Industrial Base: The contractor will provide manufacturing capability oversight and assessment as well as oversight of Government Furnished Equipment (GFE) being transferred from production contracts for future use.
4. Engineering/Technical Support: The contractor will provide continuous engineering, technical, and documentation activities required to maintain up-to-date F-16 Radar configurations while maintaining a high level of reliability and maintainability.
5. Design Process Integration: The contractor shall review and research all revision notices generated against items used on the F-16 Radar for impact at both the component and drawing level.
6. Spares Provisioning Support: The contractor shall provide a point of contact for spares provisioning to respond to customer questions concerning requirements for material or services.
7. Field Supportability: The contractor will provide responses to customer

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inquiries/requests providing necessary documentation and technical liaison for both hardware and software.

Non-Core Functions may be required on a continuing or intermittent basis but are peculiar to individual country/program requirements and cannot be cost shared as Core tasks.

The following are Non-Core Functions:

1. Requirement Analysis: The contractor shall perform design trade-off studies and analysis to accurately address the performance requirements.
2. T.O. Maintenance Updates: The contractor shall provide T.O. maintenance updates in accordance with TM-86-01.
3. Testing: The contractor shall provide engineering and test support, such as design testing and flight testing, required to ensure product integrity and reduce program risks associated with the incorporation of radar design and development changes.
4. Field Reliability and Supportability: The contractor shall provide logistics support and engineering services necessary to meet F-16 Radar supportability requirements.
5. On-Site support: On-site software support for development at Hill AFB is required. The contractor shall also provide on-site support from field engineers and technicians to assist the customer with analysis and evaluation of the Radar system.
6. System Test Specifications (STS): The contractor shall provide corrections and updates to the current LRU and SRU STS for the F-16 configurations that result from deficiencies and errors.
7. Vendor Supplier Data Base: The contractor shall maintain, as required, radar approved supplier lists as the supplier base for military devices, declinations, and changes.
8. Production Equipment Oversight: The contractor shall provide production oversight of GFE to include storage, maintenance, updates, and keeping current GFE listings. The contractor shall be responsible for a preventative maintenance program to include calibration, adjustment, lubrication, servicing, and inspection. The contractor shall provide disclosure and reporting for major repairs, replacement, and other capital rehabilitation. The contractor shall provide cost estimates for refurbishment and/or repair.
9. Modification Support: The contractor will support modifications and provide limited modification kit production and assembly within the scope of the contract.
10. Limited Repair: The contractor shall provide limited repair of GFE, items under evaluation, and other Radar type items within the scope of this contract.
11. Hardware Acquisition: The contractor shall acquire limited hardware in support of hardware and software evaluations, modification kit support, test equipment repair, and unique items in limited quantities.

Cost Estimate: The total estimated ceiling cost for this program is \$488M over the course of the contract. This cost estimate is based on current Radar Falcon 2020 contract (F42620-01-D-0076) requirements and costs. The current contract was used to determine the cost per aircraft which was multiplied by the expected number of aircraft to determine the Core Support functions. Details of the cost estimate (in \$M) are as follows:

	FY2025	FY2026	FY2027	FY2028	FY2029	To Complete	Total
Core Support							

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CSTO Support							
ED Online							
Engineering Support and Studies							
Remanufacturing	-	-					
Test Stand Maintenance							
Total							

To Complete: Refers to the remaining 5-year ordering period option, as well as the -8 extension for a total of 10.5-years

For the years 25-29 the cost is estimated based on actuals and history with escalation for inflation. Future years from 30-35 are based on finance estimation with escalation for inflation.

Below are the current LOA Lines/Funds that will be used for this effort by the participating partners:

PARTNER LOA CASE/LINE (FUNDS)

USAF 3400 FUNDS
 USN OMN/PRL FUNDS
 FMS FMS Funds

IV. Demonstration that the contractor's unique qualifications or the nature of the acquisition requires use of the authority cited above.

This is a follow-on contract for the continued provisions of highly specialized services, and award to any other source would result in unacceptable delays, increased technical risk, or substantial duplications of costs. Per FAR 6.302-1(a)(2)(ii) services may be deemed to be available only from the original source in the case of a follow-on contract for the continued development or production of a major system or highly specialized equipment, including major components thereof, when it is likely that award to any other source would result in substantial duplication of costs to the Government that is not expected to be recovered through competition or unacceptable delays in fulfilling the agencies requirements.

The Air Force's minimum need of long-term support can only be satisfied by the services provided by NGSC. NGSC designed and developed not only the family of the F-16 radars discussed in this document, but all F-16 radar systems. NGSC is the only source with complete software rights and data, engineering knowledge, all technical reports, expertise, and support personnel capable of providing comprehensive engineering, technical services, and maintenance for the F-16 radar. USG has been unable to negotiate to obtain any government purpose rights to the proprietary software rights. NGSC is the only known source with the knowledge and expertise necessary to fulfill this requirement. The contractor has a detailed knowledge base of F-16 radar operation, design configuration, and integration of aircraft avionics, which is crucial to successful support in a post-production environment. The ability to reach back to NGSC for sustainment support is critical to F-16 radar engineering changes associated with modifications, enhancements, and updates.

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The Government estimates that it will cost over \$893M to reverse-engineer the radar and components based on the original development for APG-66 and APG-68 radars. Additionally, it is estimated that the engineering team would need a minimum of 7-10 years to complete the necessary effort. The USG or other entities conducting activities to reverse engineer, develop, and produce would significantly delay repair activities for the APG 66/68 Radar System. Delays of system repair directly impact the USG and foreign-partner readiness. Aircraft not classified at Full Mission Capability (FMC) directly impact operational capability for multiple countries; some of which are directly involved or within close reach of hostile airspace, environments, and war zones.

The USG is requesting very limited report data information associated with all efforts being completed (i.e.: task orders) to meet Contract Data Requirements List (CDRL) requirements. The USG has been unable to obtain any proprietary source data, such as technical engineering data or required software from NGSC. The USG will continue to seek to obtain as much information that could potentially lead to opportunities to promote competition for USG requirements to avoid sole source. Currently, the USG does not possess the necessary technical data, software, personnel, or capabilities to entirely sustain the F-16 AN/APG 66/68 Radar. Radar data and technical details to the fidelity required to re-engineer and integrate with the F-16 platform has not been procured during the life of the radar system(s). Limited data and technical documentation in the possession of the F-16 SPO includes the System Description Document (SDD) which supports Intermediate, Organizational, and Depot-Level T.O. development, but not to the level to facilitate initiation or accelerated benefit of engineering software or hardware development for long term support of the radars. NGSC, when contacted for an estimated cost for unlimited or government purpose data rights, declined to provide the information. NGSC stated that providing such estimates has not been its historical practice. The F-16 FMS Program Office continues to pursue open competition sources through annual market research as well as attempts to acquire lower-level rights to data during task order delivery.

v. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and, if not, which exception under FAR 5.202 applies.

Hill Air Force Base Contracting (AFLCMC/WAMK) issued a Sources Sought Synopsis (SSS) on SAM.gov on 24 April 2024 (SSS: 541330) for 30 days (ending 24 May 2024) to determine if sources other than the OEM exist that can provide F-16 AN/APG-66/68 Radar PPS Support services for USAF, USN, EPAF, and FMS customers. The SSS included the Performance Work Statement (PWS), and statement notifying the interested parties that they must possess access to and the rights to use all required appropriate data. There is no exception under FAR 5.202.

The USG received responses from two small businesses.

██████████: NOT CAPABLE: While ██████████ possesses Subject Matter Experts (SMEs) with a myriad of experiences, the USG is unable to provide the data required for successful performance of F-16 AN/APG 66/68 Radar PPS support. ██████████ response indicated that it had no access to the required NGSC engineering data and its ability to perform was predicated on the assumption that the USG would be able to provide the required data.

██████████: NOT CAPABLE: While ██████████ possesses a myriad of professional services, it lacks the ability to produce the required engineering capabilities. ██████████ did not respond when contacted and the USG is unable to provide the data required for the successful performance of F-16 AN/APG 66/68 Radar PPS Support.

On 16 July 2024 the USG contacted NGSC to find out why it didn't respond to the Sources Sought. NGSC responded on 17 July 2024 stating the following: "After speaking with a

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few members of our program management team, we typically do not respond to Sources Sought as the Original Equipment Manufacturer (OEM)." This response was documented in the Market Research report. NGSC is the only source with the capability to satisfy the F-16 AN/APG-66/68 Radar PPS Support service requirements.

VI. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Based upon the (1) certified cost or pricing data provided in the offeror's proposal, (2) the program office's technical analysis of the offeror's Basis of Estimates (BOE), and (3) inputs from the Defense Contract Management Agency (DCMA), including from the Administrative Contracting Officer (ACO), the contracting officer expects they will be able to determine the anticipated cost to the Government will be fair and reasonable. Historical costs from the current contract will also be utilized to determine fair and reasonable for the Core and non-Core efforts.

In addition, the following steps will be taken to ensure the anticipated cost of this acquisition will be fair and reasonable. The contracting officer will comply with the procedures and criteria contained in FAR under Part 30 - Cost Accounting Standards, Part 31 - Contract Cost Principles and Procedures, Subparts 15.4 - Contract Pricing; to include technical evaluations and audits, as appropriate. The Contracting Office will obtain certified cost and pricing data IAW FAR Subpart 15.403, the final step is to include the Price Negotiation Memorandum (PNM). This detailed documentation and justification of price reasonableness will be disclosed in the official PNM, to be prepared upon completion of negotiations.

VII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

In accordance with FAR Part 10.001(a)(2)(v), the AFLCMC/WAMKC F-16 FMS Program Office implemented a comprehensive vendor outreach strategy to gauge industry capabilities and interests. The process began with the posting of a Sources Sought Synopsis (SSS) on SAM.gov which provided potential vendors with detailed information to fully understand the requirement including the Performance Work Statement (PWS). This SSS remained active for a 30-day window to ensure adequate time for interested parties to review the opportunity and prepare their responses. The market research yielded two companies that expressed interest in the opportunity, in addition to, the incumbent. Upon detailed evaluation of their capabilities, the two interested vendors were determined to be unqualified to produce and sustain APG 66/68 radars. The unqualified determination was due to their lack of access to proprietary software data that is exclusively owned by the OEM and is not available for purchase or licensing.

Throughout this period, the F-16 FMS Program Office pursued open communication with all interested vendors reached out requesting additional information detailing their relevant capabilities or expertise in similar projects and discussed possibilities of full and open competition to produce and sustain APG 66/68 radars. No responses outside of the OEM have demonstrated capabilities to produce and sustain these critical radar systems without access to OEM proprietary software data that the USG does not possess or own. The information and subsequent results are posed in Section V.

NGSC is currently the only source that can provide comprehensive services for the F-16 AN/APG 66/68 Radar PPS Support. Further, NGSC is the directed sole source for the required services IAW participating FMS country LOAs.

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VIII. Any other facts supporting the use of Other Than Full and Open Competition.

None.

IX. List of any sources that expressed, in writing, an interest in the acquisition.

See Section V above

A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisitions for the supplies or services required.

Throughout the history of this program, the USG has been unable to acquire sufficient source data or the proprietary software from NGSC. The USG did not acquire the data rights at program inception, nor has it been able to acquire since then to secure them. This includes incomplete technical data for both software and hardware, other than published T.O. s that are imperative for the user for troubleshooting and repairs. The lack of data would put any design team at a major deficit with many design attributes for the effort to be designed from the ground up and is not sufficient to promote future competition.

To facilitate future competition, per the previous Justification and Approval (J&A), the USG established a collaborative framework with the prime contractor to develop multiple sources for subcontracting arrangements, particularly small businesses and firms of varying sizes.

Under this strategy, when businesses contacted the USG expressing interest in potential work opportunities within the contract scope, the Government would serve as an intermediary to connect these companies directly with NGSC for potential partnerships or subcontracting possibilities. The USG has continued this proactive approach. The most recent implementation of this facilitation process occurred when the vendor [REDACTED] responded to the SSS, prompting the USG to coordinate introductions and facilitate direct communication between [REDACTED] and NGC to explore viable collaboration opportunities.

As part of this continued approach, the Government will continue to try to purchase, at a minimum, government purpose license rights discussed in Section III, from the contractor. These purchase attempts will include Technical Data Packages (TDP), additional component level engineering drawings, and all other associated intellectual property (IP) rights from the contractor that could support competition for future requirements.

Additionally, the F-16 FMS Program is also actively engaged with the OEM to acquire further software data for components and repair information obtained during each task order. This data can then be used in support and sustainment efforts for future repairs.

A SSS will be posted for each ordering period prior to the initiation of sole source contracting efforts, providing an opportunity for other potentially capable and qualified vendors to inquire about becoming a second source. The USG will also continue to promptly connect any interested vendors with the OEM to facilitate potential partnerships and subcontracts. This proactive approach ensures all eligible vendors are given fair consideration and encourages competition.

X. Certification by the Contracting Officer.

As evidenced by my signature above, I certify that this justification is accurate and complete to the best of my knowledge and belief.

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XI. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.

☒ Remove the Guidance pages below.